EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Application no. 42174/11
Levan ASATIANI and others
against Georgia

The European Court of Human Rights (Fourth Section), sitting on 4 April 2017 as a Committee composed of:
Krzysztof Wojtyczek, *President,*
Nona Tsotsoria,
Marko Bošnjak, *judges,*
and Andrea Tamietti, *Deputy Section Registrar,*
Having regard to the above application lodged on 3 July 2011,
Having deliberated, decides as follows:

## FACTS AND PROCEDURE

1. A list of the applicants is set out in the appendix. They are all Georgian nationals who were represented before the Court by Ms T. Abazadze, Ms N. Katsitadze, Mr Ph. Leach and Ms J. Evans, lawyers practising in Tbilisi and London.

2. The Georgian Government ("the Government") were represented by their Acting Agent, Mrs Sh. Mezurnishvili, of the Ministry of Justice.

3. The application concerned the dispersal by the police of a sit-in street protest on 3 January 2011. The applicants, who took part in that protest, claimed to have been affected by police abuse in breach of Articles 3 and 11 of the Convention. These complaints were communicated to the Government on 28 September 2015.

4. On 3 May and 3 June 2016 the Court received declarations signed by both parties whereby the applicants agreed to have their application struck out of the Court's list of cases against the following acknowledgements and undertakings assumed by the Government.

5. Notably, the Government acknowledged a violation of Article 3 of the Convention in relation to applicants nos. 4, 5 and 7 (Mr Topuria, Mr Revishvili and Mr Iamanidze) on account of the police abuse committed against them during the incident of 3 January 2011 and undertook to carry out an effective criminal investigation into the incident. The Government further acknowledged a violation of Article 11 of the Convention in relation to all ten applicants.

6. In addition, the Government undertook to pay the following amounts:

- EUR 2,500 (two thousand five hundred euros) to each of applicants nos. 4, 5 and 7 (Mr Topuria, Mr Revishvili and Mr Iamanidze);

- EUR 2,000 (two thousand euros) to each of applicants nos. 1-3, 6 and 8-10 (Mr Asatiani, Mr Asatryan, Mr Chighoshvili, Mr Zghudadze, Mr Dzebisashvili, Mr Elisashvili and Mr Chkhaidze).

7. The Government noted that the above-mentioned amounts would cover any pecuniary and non-pecuniary damage as well as costs and expenses, and would be converted into the respondent State's national currency at the rate applicable on the date of payment and be free of any taxes that might be chargeable to the applicants. They will be payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay these sums within the said three-month period, the Government undertook to pay simple interest on them, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. The payment shall constitute the final resolution of the case.

## THE LAW

8. In the light of the above, the Court considers that the matter has been resolved within the meaning of Article 37 § 1 (b) of the Convention and that respect for human rights as defined in the Convention and its Protocols does not require it to continue the examination of the application under Article 37 § 1 *in fine*.

9. Accordingly, the case should be struck out of the list.

For these reasons, the Court, unanimously,

*Decides* to strike the application out of its list of cases.

Done in English and notified in writing on 4 May 2017.

Andrea Tamietti
Deputy Registrar

Krzysztof Wojtyczek
President

# APPENDIX

| No. | Firstname LASTNAME | Birth date | Place of residence |
|---|---|---|---|
| **1.** | Mr Levan ASATIANI ("applicant no. 1") | 26/12/1957 | Tbilisi |
| **2.** | Mr Levon ASATRYAN ("applicant no. 2") | 18/12/1958 | Tbilisi |
| **3.** | Mr Ilia CHIGHOSHVILI ("applicant no. 3") | 18/11/1973 | Village Navazi |
| **4.** | Mr Malkhaz TOPURIA ("applicant no. 4") | 11/01/1968 | Tbilisi |
| **5.** | Mr Amur REVISHVILI ("applicant no. 5") | 29/09/1969 | Tbilisi |
| **6.** | Mr Shota ZGHUDADZE ("applicant no. 6") | 05/02/1971 | Village Nabakevi |
| **7.** | Mr Shota IAMANIDZE ("applicant no. 7") | 28/04/1986 | Tbilisi |
| **8.** | Mr Valerian DZEBISASHVILI ("applicant no. 8") | 11/10/1966 | Tbilisi |
| **9.** | Mr Teimuraz ELISASHVILI ("applicant no. 9") | 13/12/1957 | Tbilisi |
| **10.** | Mr Elguja CHKHAIDZE ("applicant no. 10") | 25/12/1956 | Tbilisi |